Dred Scott v. Sandford

U.S. Supreme Court · 60 U.S. 393 · March 6, 1857 · Chief Justice Roger Taney (majority)

Source: Dred Scott v. Sandford, 60 U.S. 393 (1857), opinion of the Court by Chief Justice Taney, text via Cornell Legal Information Institute. Public domain.

Dred Scott was an enslaved man who had lived with his enslaver in free Illinois and the Wisconsin Territory (where the Missouri Compromise of 1820 had banned slavery) before returning to Missouri. He sued for freedom on the basis of that residence. Chief Justice Taney's majority opinion ruled (1) that Black Americans could never be U.S. citizens and thus could not sue in federal court, and (2) that Congress had no power to ban slavery in the territories — striking down the Missouri Compromise. The ruling made political compromise on slavery essentially impossible and helped propel the country toward war.

> *Connect: Dred Scott overturned the Missouri Compromise (Class 8). How does the Supreme Court's role here connect back to Marbury (Class 8) — is Taney using the same tool for opposite ends?*

Key Passages

On citizenship (Taney)

> They had for more than a century before been regarded as beings of an inferior order, and altogether unfit to associate with the white race, either in social or political relations; and so far inferior, that they had no rights which the white man was bound to respect; and that the negro might justly and lawfully be reduced to slavery for his benefit.

On the Missouri Compromise

> it is the opinion of the court that the act of Congress which prohibited a citizen from holding and owning property of this kind in the territory of the United States north of the line therein mentioned, is not warranted by the Constitution, and is therefore void; and that neither Dred Scott himself, nor any of his family, were made free by being carried into this territory;

From Justice Curtis's dissent

> At the time of the ratification of the Articles of Confederation, all free native-born inhabitants of the States of New Hampshire, Massachusetts, New York, New Jersey, and North Carolina, though descended from African slaves, were not only citizens of those States, but such of them as had the other necessary qualifications possessed the franchise of electors, on equal terms with other citizens.

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	Rising sectional tension after the Kansas-Nebraska Act and 'Bleeding Kansas'; President Buchanan hoped the Court would settle the slavery-in-the-territories question.
Intended Audience *Who was the source written for?*	The parties to the case, Congress, and the nation, especially the political parties fighting over slavery in the territories.

HIPP Element	Your Analysis
Point of View *Whose perspective? Whose is missing?*	Chief Justice Roger Taney, a Marylander and former enslaver who defended slavery and Southern interests; Black Americans' perspective is excluded entirely.
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. SAQ — explain significance: Explain ONE way Dred Scott pushed the country closer to civil war.
2. How did Lincoln respond to the decision in his 1858 debates with Douglas?
3. Why does Curtis’s dissent matter historically, even though it lost the case?

Dred Scott v. Sandford

Chief Justice Roger B. Taney, for the Court · March 6, 1857

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> The Supreme Court ruled that African Americans could not be citizens and that Congress had no power to bar slavery from the territories, striking down the Missouri Compromise. The decision inflamed sectional tensions and pushed the nation toward civil war.

The question before the Court (Taney)

The question is simply this: Can a negro, whose ancestors were imported into this country, and sold as slaves, become a member of the political community formed and brought into existence by the Constitution of the United States, and as such become entitled to all the rights, and privileges, and immunities, guarantied by that instrument to the citizen? One of which rights is the privilege of suing in a court of the United States in the cases specified in the Constitution.

[. . .]

On citizenship (Taney)

The question before us is, whether the class of persons described in the plea in abatement compose a portion of this people, and are constituent members of this sovereignty? We think they are not, and that they are not included, and were not intended to be included, under the word ‘citizens’ in the Constitution, and can therefore claim none of the rights and privileges which that instrument provides for and secures to citizens of the United States. On the contrary, they were at that time considered as a subordinate and inferior class of beings, who had been subjugated by the dominant race, and, whether emancipated or not, yet remained subject to their authority, and had no rights or privileges but such as those who held the power and the Government might choose to grant them. . . . They had for more than a century before been regarded as beings of an inferior order, and altogether unfit to associate with the white race, either in social or political relations; and so far inferior, that they had no rights which the white man was bound to respect; and that the negro might justly and lawfully be reduced to slavery for his benefit. He was bought and sold, and treated as an ordinary article of merchandise and traffic, whenever a profit could be made by it.

[. . .]

On the Declaration of Independence

The general words above quoted would seem to embrace the whole human family, and if they were used in a similar instrument at this day would be so understood. But it is too clear for dispute, that the enslaved African race were not intended to be included, and formed no part of the people who framed and adopted this declaration;

[. . .]

The holding on jurisdiction

And upon a full and careful consideration of the subject, the court is of opinion, that, upon the facts stated in the plea in abatement, Dred Scott was not a citizen of Missouri within the meaning of the Constitution of the United States, and not entitled as such to sue in its courts;

[. . .]

On the Missouri Compromise

Thus the rights of property are united with the rights of person, and placed on the same ground by the fifth amendment to the Constitution, which provides that no person shall be deprived of life, liberty, and property, without due process of law. And an act of Congress which deprives a citizen of the United States of his liberty or property, merely because he came himself or brought his property into a particular Territory of the United States, and who had committed no offence against the laws, could hardly be dignified with the name of due process of law. . . . Now, as we have already said in an earlier part of this opinion, upon a different point, the right of property in a slave is distinctly and expressly affirmed in the Constitution. The right to traffic in it, like an ordinary article of merchandise and property, was guarantied to the citizens of the United States, in every State that might desire it, for twenty years. And the Government in express terms is pledged to protect it in all future time, if the slave escapes from his owner. This is done in plain words—too plain to be misunderstood. And no word can be found in the Constitution which gives Congress a greater power over slave property, or which entitles property of that kind to less protection that property of any other description. . . . Upon these considerations, it is the opinion of the court that the act of Congress which prohibited a citizen from holding and owning property of this kind in the territory of the United States north of the line therein mentioned, is not warranted by the Constitution, and is therefore void; and that neither Dred Scott himself, nor any of his family, were made free by being carried into this territory;

[. . .]

From Justice Curtis's dissent

At the time of the ratification of the Articles of Confederation, all free native-born inhabitants of the States of New Hampshire, Massachusetts, New York, New Jersey, and North Carolina, though descended from African slaves, were not only citizens of those States, but such of them as had the other necessary qualifications possessed the franchise of electors, on equal terms with other citizens.

Words to know

immunities — legal protections from government interference

plea in abatement — a legal motion to throw out a case before it is heard

sovereignty — the self-governing people who hold supreme political power

subjugated — conquered and held under control

merchandise and traffic — goods that are bought and sold

due process of law — fair legal procedures the government must follow before taking liberty or property

franchise of electors — the right to vote